NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- V)

C.P. (CAA)-40/ND/2022

IN THE MATTER OF SCHEME OF ARRANGEMENT:

Puresoftware Private Limited

.....Applicant No. 1/Demerged Company

AND

Puresoftware Technologies Private Limited

.....Applicant No.2/Resulting Company

Order Delivered on: 10.06.2022

Section: 230 to 232 of the Companies Act, 2013

CORAM

MR.ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)
MR. HEMANT KUMAR SARANGI, HON'BLE MEMBER (TECHNICAL)

PRESENT

For the Applicants: Ravi Sharma, Adv.

ORDER

AS PER MR. HEMANT KUMAR SARANGI, HON'BLE MEMBER (TECHNICAL)

This Company Petition, jointly filed by the Applicant Companies, is coming before us for admission, fixing a date for hearing and final disposal of the Application, as well, as for a direction for publication

and issuance of notices to the concerned authorities for objections, if any, to the Composite Scheme of Arrangement (hereinafter, referred to as the **"SCHEME"**), contemplated between the Applicants, which will take effect from the Appointed Date of 01.04.2022.

2. As per the averments, the Registered offices of the Applicant Company No. 1 and 2 are located in Delhi and hence, falling within the territorial jurisdiction of this Bench.

3. From the case records, it is seen that the First Motion Application, seeking directions for convening/dispensing the meeting of Shareholders, Secured Creditors and Unsecured Creditors of both the Applicant, was filed before this Tribunal, in C.A.(CAA)-05/ND/2022, under Sections 230-232 of the Companies Act, 2013 and vide order dated 11.03.2022, this Tribunal further dispensed with the requirement of holding/convening the meeting of Equity Shareholders, Secured and Unsecured Creditors of both the Applicant Companies.

5. The prayers in this Petition, by way of Second Motion, are for fixing a date of hearing as well as other consequential directions in terms of the provisions of the Section 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016. It is now hereby ordered as follows:

(i) **The Petition stands Admitted**.

(ii) **The date of hearing** of the Petition filed by the Applicant Companies for approval of the Scheme **is fixed for 15.09.2022**

(iii) **Notice of the hearing shall be published in the newspapers** namely, "Business Standard" in English and "Business Standard" in Hindi /vernacular language, circulated within the area where the registered office of applicant companies is situated or are carrying on business in not less than 40 days before the aforesaid date fixed for hearing.

6. In addition to the publication of the above Public Notice, the Applicant Companies shall, individually serve the notices of this Petition to the following Authorities, namely:

(a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs,

(b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs,

(c) Official Liquidator, Delhi,

(d) The Income Tax Department through the Income Tax Cell at DCIT (High Court Cell), Lawyer's Chamber, Block No. 1, Room No. 428 & 429, Delhi High Court, New Delhi

(e) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme;

at least 40 days before the date fixed for hearing of this Petition.

7. That the Applicant Companies shall, at least 7 days before the date of hearing of the Petition, file an Affidavit of Service in relation to

the Newspaper publication effected as well as service of Notices on the Authorities as specified above including the Sectoral Regulators, if any.

8. Objections, if any, by the Authorities to whom Notices are given on or before the date of hearing fixed herein, may be filed to the "SCHEME" contemplated by the Applicant Companies, failing which it will be considered by this Tribunal that there is no objection to the approval of the "SCHEME", on the part of the Authorities, subject to other conditions as may be applicable under the Companies Act, 2013 and relevant rules framed there under being satisfied.

Let a copy of this Order be served to parties.

Sd/-

(HEMANT KUMAR SARANGI)
Member (T)

Sd/-

(ABNI RANJAN KUMAR SINHA)
Member (J)